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EXPERT OVERVIEW

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THE HONG KONG CONVENTION AND THE EU-SHIP RECYCLING REGULATION

The Hong Kong Convention on the safe and environmentally sound recycling of ships dates back to 2009, but entered into force in June 2025. This overview clarifies the main points of the current legal framework and provides some context.

LEGAL FRAMEWORK FOR SHIP RECYCLING

The relevant legal framework consists of three layers of legislation: international conventions, European regulations and national legislation.

On international level it is the Basel Convention on transboundery Movement of Hazardous Waste and its disposal (1989) and, specific on ship recycling, the Hong Kong Convention on the safe and environmentally sound recycling of ships (2009) from the IMO.

The Basel Convention covers transport of any sort of waste (over borders), including end-of-life ships. Since 2019 also the 'Ban-amendment' came into force. This amendment prohibits transport of waste from OECD countries to non-OECD countries. Where the Basel Convention is applicable to any sort of waste, the Hong Kong Convention (HKC) focuses on ships and ship recycling only.

Following the Basel Convention, the European Union issued the European Regulation on the Shipments of waste, with the aim to implement the Basel Convention. It applies to all types of waste that cross an (EU) border. After the adoption of the Hong Kong Convention in 2009, the European Union followed in 2013 with the European Ship Recycling Regulation (SRR). The SRR is discussed extensively in the SRR overview.

The European Regulation on the Shipments of waste makes an exception for ships that fall within the scope of the EU Ship Recycling Regulation (SRR). The Basel convention does not have a similar exception for ships within the scope of the HKC.

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At national level, international conventions and all other European legislation except Regulations, must be translated into legislation. For the Netherlands, this primarily concerns the Wet Milieubeheer, Chapter 10 (Waste).

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THE HONG KONG CONVENTION (HKC)

The HKC intends to address all issues related to ship recycling, including ships sold for scrapping which contain environmentally hazardous substances such as asbestos, heavy metals and hydrocarbons. This results in rules covering the design, construction, operation and preparation of ships to facilitate safe and environmentally sound recycling. The Convention also provides a baseline for working and environmental conditions at ship recycling yards. The HKC was adopted in 2009. After the ratification of the HKC door Bangladesh and Liberia in 2023, the requirements to enter into force were met and the HKC entered into force on June, 26 2025.

If the ship also has an EU-flag, it could also constitute a violation of the SRR – even if the recycling was fully in compliance with the HKC.

LEGAL COMPLEXITY

In general, the entry into force of the HKC is a positive development. However, with the HKC into force, the legal situation has become considerably more complex.

For example, a ship that sails from an OECD-country to a non-OECD country to be recycled at an HKC-certified yard could constitute a violation of the Ban-Amendment of the Basel Convention. If the ship also has an EU-flag, it could also constitute a violation of the SRR – even if the recycling was fully in compliance with the HKC (unless the yard was on the EU-list of approved yards).

As signatories to the HKC, the Netherlands might have an obligation to prosecute cases clearly in breach of the HKC. At the moment, it is still unclear how this will evolve.

[1]Regulation (EU) 2024/1157 on shipments of waste.
[2]Regulation (EU) 1257/2013 on ship recycling.
[3]See section 17 of the HKC. Currently, there are 24 Parties to the Convention, including major flag states such as Japan, Liberia, the Marshall Islands and Panama, as well as four major ship recycling countries: Bangladesh, India, Pakistan and Türkiye. Altogether they cover 57.15% of the world's shipping by tonnage, see also https://www.imo.org/en/mediacentre/pressbriefings/pages/hong-kong-convention-entry-into-force.aspx

GLOSSARY

Recent cases

In 2023 in Norway a ship management company accepted a fine of €700,000 for the scrapping of two shuttle tankers Navion Britannia and Alexita Spirit on the beach of Alang, India via a cash buyer specialised in scrapping in South Asia. The Norwegian company had stated that the ships would be recycled in full compliance with the requirements and standards of the Hong Kong Convention. The Norwegian authorities did not agree and based the fine on their national equivalent of the SRR.

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